

6. Preparation of oral proceedings

6.1. Fixing or changing the date for oral proceedings

6.1.1 Legal provisions and notices

The practice for fixing the date of oral proceedings before the departments of first instance and the boards of appeal was published in a notice in OJ 2000, 456 ("the 2000 Notice"). The EPO's notice of 18 December 2008 (OJ 2009, 68) ("the 2008 Notice") adjusted the procedure for changing the date before the departments of first instance.

For proceedings before the boards of appeal, Art. 15(2) RPBA 2020 deals with the possibility of changing the date. It replaces Art. 15(2) RPBA 2007 and supersedes the notice of the Vice-President dated 16 July 2007 of the EPO ("the 2007 Notice"), OJ SE 3/2007, 115. Art. 15 RPBA 2020 entered into force on 1 January 2020.

6.1.2 Request for changing the date of oral proceedings

It is within the board's discretion to change the date at the request of a party (Art. 15(2) RPBA 2020). A request of a party for a change of the date fixed for oral proceedings may be allowed if the party has put forward serious reasons which justify the fixing of a new date. According to Art. 15(2)(a) RPBA 2020 the request shall be filed in writing, reasoned and, where appropriate, supported by documentary evidence. The request shall be filed as soon as possible after the summons to oral proceedings has been notified and the serious reasons in question have arisen.

For the departments of first instance, see point 2.2 of the 2008 Notice (OJ EPO 2009, 68). The wording of the notice makes it clear that the decision of the department of first instance is of a discretionary nature. The request must be filed as soon as possible after the grounds preventing the party concerned from attending the oral proceedings have arisen, and shall be accompanied by a sufficiently substantiated written statement indicating these reasons. A change in the date of oral proceedings can only be requested in case of "serious reasons" that justify the fixing of a new date.

For as long as a request for postponement of oral proceedings has not been granted, the requesting party cannot simply assume that it will be. The party has to consider the possibility of a refusal of the request and has to prepare the case accordingly to minimise the risk of time pressure (T 1102/03, T 2526/11).

Where a request for postponement of oral proceedings is refused on the ground that the request was not sufficiently substantiated, the decision of the examining division should state in clear terms what should have been submitted or explained (T 447/13).

The decision to change the date for oral proceedings is a discretionary one (concerning the departments of first instance see T 1505/06, T 2526/11, T 447/13; concerning the boards of appeal, see Art. 15(2) RPBA 2020). It is inherent from the discretionary nature of the decision whether to change (or not) a date for oral proceedings that a request will not

succeed simply because the reasons for it fall within the examples of acceptable reasons (T 699/06, T 861/12).

For the question of whether a request for postponement of oral proceedings can lead to a different apportionment of costs under Art. 104 EPC, see chapter III.R.2.2. "Acts or omissions prejudicing the timely and efficient conduct of oral proceedings".

6.1.3 Request or reasons for postponement filed too late

A request for postponing the date of oral proceedings may be refused if it is late filed (T 601/06, T 1053/06, T 518/10, T 1101/13, T 1663/13, T 932/16).

In T 1080/99 (OJ 2002, 568) the board had made it clear in a letter sent almost three months before appointed oral proceedings that a request by a party for postponement of the oral proceedings did not meet all the requirements of the 2000 Notice. The party, instead of attempting to supplement its original request as soon as possible, chose to react to the board's letter only one week before the appointed oral proceedings. The board held that the additional reasons and evidence for the request for postponement were received too late and could therefore not be accepted.

In T 601/06 the board considered the request to postpone the oral proceedings to be late filed. The representative should have been aware when receiving the summons that he would be prevented from attending the oral proceedings and should have filed his request immediately. Filing the request more than one month later was not considered to fulfil the respective requirements of Art. 15(2) RPBA 2007 or of the 2007 Notice (see also T 485/09, T 182/14). The board also referred to T 514/06, in which a request for postponement was made a couple of days before the set date was granted. The board in T 601/06 considered that, taking into account the circumstances of T 514/06 (a case of death within the family), the request had not been late filed. See also T 231/13.

In T 676/16 the board received the request for postponement only three working days before the oral proceedings. The appellant, who was based in Ireland, cited the travel restrictions in place caused by the ongoing Covid-19 pandemic as a serious reason. The board stated that pursuant to Art. 15(2)(a) RPBA 2020, such a request should be filed as soon as possible after the summons to oral proceedings had been notified and the serious reasons in question had arisen. Parties were expected to consult the publicly available list of international risk areas by the Robert Koch Institute, in order to determine and inform the board in good time whether they would attend the arranged oral proceedings. The request for postponement of the oral proceedings was therefore refused.

In T 174/16, considering the particularities of the case in hand (flight cancellation along with the impossibility of using other travel means), the board held that it was unreasonable to draw the conclusion that the request for postponement filed less than 24 hours before the scheduled oral proceedings had been late filed. The board considered that the opposition division had committed a substantial procedural violation by not postponing oral proceedings.

In **T.1869/17** the request to postpone the oral proceedings was refused. The board stated that there is no bar to holding two oral proceedings on the same day. The reason for holding both oral proceedings on the same day was that both cases concerned divisional applications deriving from the same parent application. The description of both patents was essentially the same, so that any reasonable person would conclude that the cases were strongly related to each other.

6.1.4 Reasons submitted in a request for postponement

According to Art. 15(2) RPBA 2020 (see also the 2007 Notice) and the 2008 Notice (departments of first instance), a change in the date of oral proceedings can only be requested in case of "serious reasons" justifying the fixing of a new date. Differences in detail exist between Art. 15(2)(b) RPBA 2020 and the 2008 Notice. Art. 15(2)(b) RPBA 2020 and the 2008 Notice give examples of serious reasons that may justify a change of date. The lists are non-exhaustive.

Art. 15(2)(b) RPBA 2020 sets out a list of examples of reasons which have been taken, with slight adaptations from the 2007 Notice. The list of examples include: (i) notification of a summons to oral proceedings in other proceedings before the EPO or a national court received before notification of the summons to oral proceedings before the board; (ii) serious illness; (iii) a death within the family; (iv) marriage or formation of a similar recognised partnership; (v) military service or other obligatory performance of civic duties; (vi) holidays or business trips which have been firmly booked before notification of the summons to oral proceedings. Art. 15(2)(c) RPBA 2020 sets out a non-exhaustive list of examples of reasons which, as a rule, do not justify a change of date: (i) filing of new requests, facts, objections, arguments or evidence; (ii) excessive work pressure; (iii) unavailability of a duly represented party; (iv) unavailability of an accompanying person; (v) appointment of a new professional representative.

According to Art. 15(2) RPBA 2020 and if the party is represented, the serious reasons must relate to the representative, and not the client (see also **T.1916/09**, **T.2125/11**, **T.231/13**).

a) Serious illness

In **T.447/13** the board held that, for the purposes of deciding whether to grant a request for postponement of oral proceedings on grounds of illness, "serious illness" means an illness which is sufficiently serious to prevent the representative travelling to oral proceedings and satisfactorily presenting the case on the appointed day.

In **T.1246/10** the board accepted a first postponement of the oral proceedings in view of the exacerbation of the appellant's serious illness and the fact that the respondent did not object to a postponement. However, the board refused the second request to postpone oral proceedings filed less than one month before the scheduled date. The respondent opposed any postponement thereof. Furthermore, the board had no indication that a further postponement for a few months could change the appellant's personal health

situation. The appellant should have appointed a representative if he could not attend the oral proceedings himself.

b) Booked holidays

The board in T 1102/03 stated that, while a holiday was a possible valid basis for a request, it was not necessarily a sufficient reason for postponement. The board held that the case in hand presented circumstances which entailed a special organisational burden. The effort of postponing fixed oral proceedings until a date might be found which would suit numerous parties, the members of an extended board, and the facility management of the EPO, outweighed the effort of postponing or interrupting one representative's holiday booked to a destination within Europe. See also T 601/06, T 1610/08.

In R 11/12 the request for postponement was rejected since the representative's holidays ended three days before the scheduled oral proceedings; in addition, the planned birthday party for the day after the oral proceedings could not be regarded as being a serious reason justifying the postponing of the oral proceedings.

c) Business trips

Point 2.3 of the 2008 Notice lists "business trips which have been firmly booked before the notification of the summons to oral proceedings" as a serious reason for changing the date of oral proceedings (departments of first instance). In (vi) of Art. 15(2)(b) RPBA 2020 business trips have been added to holidays.

Concerning appeal proceedings, the board in T 869/06 accepted such a reason for changing the date of oral proceedings.

d) Speaking at a conference

In T 699/06 the board held that if European representatives wished to speak at conferences (even with the approval of clients whose cases are thereby delayed), the work of the boards of appeal and the interests of their clients' adversaries and the public should not be affected as a result. A representative who undertook such a commitment did so in the knowledge that this would make him unavailable to his clients, and unavailable to appear at any oral proceedings, on the date in question. See also T 2526/11. However, see T 902/07, in which the board referred to T 699/06, but granted the request to postpone oral proceedings after considering the agreement of the adversarial party's representative.

e) National holiday

In T 664/00 the appellant (patent proprietor) had requested an adjournment of oral proceedings due to a public holiday in the USA. The board rejected the request as national holidays in individual contracting states are not recognised by the EPO for practical reasons (see J 5/98). To allow for national holidays in non-contracting states throughout the world would be even less practical. See also T 2125/11.

f) Newly appointed representative

In T 37/97 a new representative had been appointed after the summons to oral proceedings had been duly issued. The board rejected the request for postponement and held that the new representative, before taking on the mandate, could be expected to have made sure he was available on the appointed date or to arrange for alternative representation. Furthermore, a professional representative could be expected to be able to prepare for oral proceedings with all due care within a month unless the case was exceptionally difficult, which it was not. See also J 4/03.

In T 2018/17 the board stated that the examining division gave no reasons why the appointment of a new representative was not regarded as being a serious reason for changing the date for oral proceedings. However, such a reasoning needs to be given if a division relies on it.

In T 693/95 the board had waited for two years to give the appellants time to find a legal representative of their choice. This they had failed to do. After such a long delay there was no valid reason for postponing oral proceedings.

g) Obligation to give reasons as to why a representative cannot be substituted

According to Art. 15(2)(c)(v) RPBA 2020 the appointment of a new professional representative, as a rule, does not justify a change of date. The obligation mentioned in the 2007 Notice to state in the request why another representative cannot stand in for the one prevented from attending has been dispensed with. For further decisions on this topic, see "Case Law of the Boards of Appeal of the EPO", 9th ed. 2019, III.C.6.1.5.

The 2000 and 2007 notices (points 2.5 and 2.3 respectively) stated that any request to set another date for oral proceedings should indicate why another representative could not stand in for the one unable to attend. This meant that if and when the board was satisfied that the representative was prevented from attending, it must therefore be considered whether another representative, who did not have to be from the same firm, could substitute the prevented representative (T 699/06, T 861/12). If the appellant has signed a general authorisation to a law firm, the representative had to provide convincing reasons as to why no other representative of this firm could substitute the representative (T 518/10).

h) Absence of duly represented party or of inventor

In T 275/89 (OJ 1992, 126) the board considered that the illness of a duly represented party was not a sufficient reason for postponing appointed oral proceedings unless the party who was ill needed to be present. A request to change an appointment could only be allowed if unforeseen, exceptional circumstances had arisen, which either made oral proceedings impossible (such as a representative's or unrepresented party's sudden illness) or could have a decisive impact on the course of the proceedings (such as unforeseen unavailability of an important witness or expert). See also T 1923/06.